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[TENTATIVE] ORDER GRANTING IN PART AND DENYING IN PART PLAINTIFF'S MOTION TO COMPEL COMPLIANCE WITH DEPOSITION SUBPOENAS FOR PRODUCTION OF BUSINESS RECORDS

I. INTRODUCTION

This action was filed on April 21, 2022, and arises from the tragic deaths of Plaintiff Erik Denton's ("Plaintiff") three minor children at the hands of their mother, Liliana Carrillo. Plaintiff alleges that the City of Los Angeles and the County of Los Angeles (collectively, "Defendants") negligently failed to fulfill their mandatory duties under the Child Abuse and Neglect Reporting Act (CANRA) by failing to investigate and cross-report allegations of abuse, which he contends could have prevented the killings.

On June 12, 2026, Plaintiff filed a motion to compel compliance with a deposition subpoena for production of business records served on nonparty Nichole M. Vienna, Psy.D., LMFT ("Dr. Vienna"). On July 8, 2026, Plaintiff filed a separate motion to compel compliance with a deposition subpoena served on nonparty Diana L. Barnes, Psy.D. ("Dr. Barnes"). The Los Angeles County Public Defender's Office ("Objecting Party") opposed the motions.

On July 10, 2026, the Court continued the hearing and ordered supplemental briefing. On September 4, 2026, Plaintiff filed supplemental briefs, and Objecting Party filed supplemental oppositions. The Court addresses both motions in this tentative ruling.

Judicial notice

The Court GRANTS Plaintiff's request for judicial notice as to the to the existence and contents of the minute order, but not as to the truth of any factual matters stated therein. (*Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 482.)

II. LEGAL STANDARD

CCP § 2020.010 permits discovery of non-party witnesses through oral and written depositions. (See CCP § 2020.010(a)(1), (2); *Hawkins v. TACA International Airlines, S.A.* (2014) 223 Cal.App.4th 466, 476.) A deposition subpoena may command the attendance and testimony of the deponent, the production of business records, or both. (CCP § 2020.020.) Additional requirements regarding notification and a right to object are in place where the records sought are consumer records, including personal medical records. (See CCP § 1985.3.)

California Code of Civil Procedure section 1987.1, subdivision (a) states, “[i]f a subpoena requires the attendance of a witness or the production of books, documents, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court’s own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.”

“[U]pon motion reasonably made by the party, judges may rule upon motions for quashing, modifying or compelling compliance with, subpoenas.” (Lee v. Swansboro Country Property Owners Ass’n (2007) 151 Cal.App.4th 575, 582-583.)

Where discovery implicates privacy rights, the court must balance the competing interests by determining whether the information sought is directly relevant to the litigation and whether the need for discovery outweighs the privacy interests at stake. (Britt v. Superior Court (1978) 20 Cal.3d 844; Allen v. Superior Court (1984) 151 Cal.App.3d 447; Harris v. Superior Court (1992) 3 Cal.App.4th 661.)

Welfare and Institutions Code section 10850 provides that records made or kept by a public officer or agency in connection with the administration of public social services are confidential and generally not subject to disclosure. However, the statute permits disclosure where the examination is directly connected with the administration of the program, including in a criminal or civil proceeding conducted in connection with the administration of that program. (Welf. & Inst. Code, § 10850, subd. (a).)

III. ANALYSIS

Dr. Vienna

On July 10, 2026, the Court held a hearing on this matter and continued the hearing to permit the parties to submit supplemental briefing. Plaintiff and the Los Angeles County Public Defender’s Office (“Objecting Party”) have since submitted supplemental briefing. Based on the supplemental briefing and evidence presented, the Court makes the following findings.

As a preliminary matter, the evidentiary issue previously identified has been cured. Objecting Party now submits the declaration of Traci R. Glover, Carrillo’s counsel of record, establishing that defense counsel requested Dr. Vienna’s appointment, the criminal court appointed her on March 16, 2022, pursuant to Evidence Code sections 730 and 952, and the appointment was filed under seal. Glover further establishes that LAPDO provided Dr. Vienna with Carrillo’s records solely for purposes of the confidential appointment. (Glover Decl., ¶¶ 3, 7-8.)

Plaintiff has since narrowed the subpoena and now seeks only (1) Dr. Vienna’s March 26, 2023, report, and (2) any audio or video recordings of Dr. Vienna’s interviews with Carrillo. (Supp. Motion, p. 2.) Objecting Party maintains that these materials are protected by the attorney-client and psychotherapist-patient privileges, the work product doctrine, and confidentiality protections, and argues that no waiver occurred. (Supp. Opp., pp. 2-8.)

Objecting party also argues that the materials cannot be obtained by civil subpoena because Dr. Vienna’s appointment was filed under seal in the criminal action. Glover establishes that Dr. Vienna’s appointment was filed under seal. (Glover Decl., ¶ 7.) However, the record does not establish that Dr. Vienna’s March 26, 2023, report or the interview recordings were themselves filed under seal or otherwise encompassed by the criminal court’s sealing order. Thus, Objecting Party has not established that enforcement of the narrowed subpoena would require this Court to unseal a record subject to California Rules of Court, rule 2.551(h).

That aside, the Court finds that Dr. Vienna was appointed at the request of defense counsel to assist in Carrillo’s criminal defense. Thus, Dr. Vienna’s examination of Carrillo, the information obtained during the examination and resulting report were initially protected by the attorney-client privilege. People v. Lines (1975) 13 Cal.3d 500, 510–514.) The fact that Dr.

Vienna was court-appointed does not alter that protection where, as here, she was appointed at defense counsel's request to provide confidential assistance to the defense. (Id. at pp. 510–511; Evid. Code, §§ 952, 954, 1017.)

However, the question is whether Carrillo subsequently waived that privilege through the disclosure or use of Dr. Vienna's report. The Court finds that she did. Glover declares that the prosecution agreed to stipulate to the reports prepared by Drs. Barnes, Vienna, and Rad, that the criminal court received all three reports, and that the parties ultimately submitted the sanity phase on those reports, which the court reviewed in finding Carrillo not guilty by reason of insanity. (Glover Decl., ¶ 10.) Although the October 17, 2024, minute order references only the reports of Drs. Rad and Barnes, Glover establishes that Dr. Vienna's report was also disclosed to and received by the criminal court. Thus, Carrillo waived the privilege as to the report itself. (Evid. Code, § 912.)

Based on the foregoing, the Court finds that Carrillo waived the privilege as to Dr. Vienna's report. Thus, Plaintiff is entitled to production of the March 26, 2023, report. However, the Court reaches a different conclusion as to the audio and video recordings of Dr. Vienna's interviews with Carrillo.

There is no showing that the recordings themselves were disclosed to the prosecution, submitted to the criminal court, or otherwise disclosed outside the privileged relationship. The disclosure of Dr. Vienna's report does not, without more, waive the privilege as to the underlying interview recordings. Thus, the Court DENIES the motion as to the audio and video recordings

Dr. Barnes

Plaintiff also moves to compel Dr. Barnes to produce her report and interview recordings. Dr. Barnes did not oppose the motion; however, Plaintiff has since narrowed the subpoena to Dr. Barnes's November 18, 2022, report and any recordings of her interviews with Carrillo. (Supp. Brief, p. 5.)

As discussed above, the criminal court expressly admitted and considered Dr. Barnes's report in determining that Carrillo was not guilty by reason of insanity. Thus, the privilege as to the report was waived, and Plaintiff is entitled to its production. However, there is no showing that Dr. Barnes's underlying interview recordings were disclosed or otherwise subject to waiver. Thus, the Court GRANTS the motion as to Dr. Barnes's November 18, 2022, report and DENIES the motion as to the recordings.

IV. CONCLUSION AND ORDER

The Court GRANTS in part and DENIES in part Plaintiff's motions to compel compliance with the deposition subpoenas. The motions are GRANTED as to Dr. Vienna's March 26, 2023, report and Dr. Barnes's November 18, 2022, report. The motions are DENIED as to the audio and video recordings of their interviews with Carrillo.

Plaintiff is to give notice.

Dated: September 14, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT